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IN THE CIRCUIT COURT OF THE EIGHTH JUDICIAL CIRCUIT
IN AND FOR ALACHUA, COUNTY, FLORIDA

CHRISTOPHER A. HANSON,
individually and as attorney for
himself and next friend and attorney
for his two minor children,
Petitioners,

v. Case No.: 01-2026-CA-001794

UNIVERSITY OF FLORIDA BOARD
OF TRUSTEES, and CUSTODIAN
OF PUBLIC RECORDS, UNIVERSITY
OF FLORIDA,
Respondents.
_____/

RESPONDENT UNIVERSITY'S RESPONSE TO PETITIONER'S VERIFIED MOTION FOR AN ORDER TO SHOW CAUSE WHY DANIEL QUIROS SHOULD NOT BE HELD IN CONTEMPT FOR FAILING TO OBEY A SUBPOENA, OR, IN THE ALTERNATIVE, TO REOPEN THE EVIDENCE, COMPEL HIS PRODUCTION, AND DIRECT HIS APPEARANCE

COMES NOW, Respondent, the University of Florida Board of Trustees (the "University"), and responds to *Petitioner's Verified Motion for an Order to Show Cause Why Daniel Quiros Should Not Be Held In Contempt for Failing to Obey a Subpoena, or, in the Alternative, to Reopen the Evidence, Compel His Production, and Direct His Appearance* (the "Motion"), and in support states:

1. On September 2, 2026, the Court conducted an evidentiary hearing in this case pursuant to § 119.11(1), Fla. Stat. (the "Hearing").

2. During the course of the Hearing, Petitioner never called Daniel Quiros as a witness. In fact, Petitioner never:

a. requested that he testify,

b. inquired about his whereabouts,

c. asserted that he was under subpoena,

d. asked the Court to contact him, or

e. objected to—or even mentioned—his alleged non-appearance.

3. "Criminal contempt requires some willful act or omission calculated to hinder the orderly functions of the court." *Stevens v. State*, 547 So. 2d 279, 280 (Fla. 5th DCA 1989). As there is nothing in the record about Mr. Quiros's subpoena, by definition there is no showing of willful conduct by Mr. Quiros.

4. As a consequence, the Motion is founded on pure speculation. There is no way to know whether the witness was available because Petitioner made no attempt to call him to testify.[1]

5. In short, Petitioner seeks to have the Court take the extraordinary step of holding a witness in contempt when Petitioner made no attempt to enforce the subpoena. Under such circumstances, holding a witness in contempt is unjustified. *See Mella v. Moskowitz*, 436 So. 2d 231, 232 (Fla. 3d DCA 1983), *cause dismissed*, 443 So. 2d 980 (Fla. 1983) ("The plaintiff, however, at no time requested the trial court, either directly or impliedly, to enforce that subpoena after the witness failed to appear [T. 67–78]; the plaintiff, therefore, cannot now complain for the first time on appeal that the trial court failed to enforce this subpoena.").

6. In the case of *Tape v. State*, 661 So. 2d 1287 (Fla. 4th DCA 1995), the Fourth DCA upheld a trial court's decision not to enforce a subpoena where, during trial, defense counsel equivocated on whether the witness's testimony would actually be needed. The Fourth DCA held: "While appellant had a right to have the subpoena enforced, he waived that right by failing to respond affirmatively [to the trial court] that he would call Ms. Reagan as a witness. Thus, under the facts of this case, he cannot now claim reversible error for the trial court's failure to enforce the witness subpoena." *Id. at* 1288.

7. Here, Petitioner did even less than counsel in the *Tape* case. In *Tape*, counsel at least identified the witness during the hearing and asked the trial court to enforce the subpoena. In the instant case, Petitioner was completely silent. Under such circumstances, there is no basis whatsoever to suggest that the witness disobeyed a subpoena.

[1] Mr. Quiros was on standby just in case he was called to testify. See Affidavit of Daniel Quiros, attached as **Exhibit A**. He never appeared because Petitioner made no effort to call him.

8. It is reasonable, on the other hand, to call Petitioner's credibility into question for filing the Motion in the first place. Petitioner served a subpoena on Mr. Quiros but made the conscious decision not to call him as a witness. If Petitioner had genuinely believed that Mr. Quiros's testimony would even slightly benefit his case, then he would have made some effort—any effort—to take his testimony. It is just as likely that Petitioner contrived this scenario in the hope of creating an appealable issue and to extend this litigation unnecessarily.

9. Moreover, Petitioner's conscious strategy cannot be corrected through reconsideration or rehearing. Though framed as a motion to reopen proceedings, the Hearing concluded as scheduled. Thus, in substance the Motion seeks *re*hearing. However, "[r]ehearing is not intended as a device to present additional evidence that was available, although not presented, at the original trial." *Allard v. Al-Nayem Intern., Inc.*, 59 So. 3d 198, 202 (Fla. 2d DCA 2011). "[C]ourts generally do not provide parties with an opportunity to retry their case upon a failure of proof." *Cleveland v. Crown Fin., LLC*, 212 So. 3d 1065, 1069 (Fla. 1st DCA 2017). *See also, Pain Care First of Orlando, LLC v. Edwards*, 84 So. 3d 351, 355 (Fla. 5th DCA 2012) ("Having proceeded to judgment on legally insufficient proof, Appellee does not get a do-over.").

10. It should also be noted that if Petitioner had attempted to call Mr. Quiros (which he did not), and if Mr. Quiros had then failed to appear (again, there is no evidence that Mr. Quiros was actually unavailable), the University could have moved to the quash the subpoena as unreasonable. *See* Fla. R. Civ. P. 1.410(c)(1). This is because the subpoena for Mr. Quiros was served at 4:48 PM the evening before a 9:00 AM hearing the next day. In effect, Petitioner gave Mr. Quiros less than two business hours to prepare to testify. In any event, the reasonability of the subpoena served on Mr. Quiros is moot, as Petitioner consciously chose not to call him to testify at the Hearing.

WHEREFORE, the University respectfully requests that the Court summarily deny the Motion and enter any other relief the Court deems proper.

Respectfully submitted,

/s/ James W. Kirkconnell
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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that the undersigned counsel electronically filed the foregoing using the Florida Courts E-Filing Portal, which will generate a Notice of Electronic Filing to Petitioner at Petitioner's designated email address on this 17th day of September, 2026.

/s/ James W. Kirkconnell
James W. Kirkconnell, Esq.

EXHIBIT A

IN THE CIRCUIT COURT OF THE EIGHTH JUDICIAL CIRCUIT
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AFFIDAVIT OF DANIEL QUIROS

STATE OF FLORIDA
COUNTY OF ALACHUA

I, DANIEL QUIROS, being duly sworn, do affirm and state as follows:

1. My name is Daniel Quiros, and I am over eighteen (18) years old. I have personal knowledge of the facts stated herein and affirm that they are true and correct to the best of my knowledge.
2. At approximately 4:45 PM on September 1, 2026, I was served a subpoena to appear at an evidentiary hearing to take place the next morning, September 2, 2026, at 9:00 AM via Zoom.
3. Starting at 9:00 AM on the morning of September 2, 2026, I remained on standby ready to testify via Zoom if called as a witness, but I was never called.

FURTHER AFFIANT SAYETH NAUGHT.

I declare under penalty of perjury that the foregoing is true and correct.

Daniel Quiros

Daniel Quiros